



KENYATTA UNIVERSITY

BACHELOR OF LAWS DEGREE

Title of Research Paper: **THE EFFICIENCY OF KENYAN LAWS IN ADDRESSING
DEFILEMENT CASES: A MOMBASA PERSPECTIVE**

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ABSTRACT

This study examines the effectiveness of Kenyan laws in addressing defilement cases, with a specific focus on Mombasa. Despite the enactment of the Sexual Offences Act in 2006, which aimed to curb sexual crimes and protect minors, defilement remains a significant issue in the region. Through a comprehensive analysis of the legal frameworks, case studies and interviews with legal professionals, the study aims to assess the strengths and weaknesses of the existing legal frameworks and the socio-cultural factors influencing the existing laws. The paper will explore challenges faced by law enforcement agencies, prosecutors and courts in handling defilement cases, including issues of evidence gathering, victim support and sentencing. Additionally, it will evaluate the impact of recent legal reforms on the prosecution of defilement cases and identify areas of improvement to ensure justice and protection for the minors in Mombasa.

Chapter One

1.0 Introduction

Defilement, the act of causing penetration on a child,¹ remains a pervasive issue in Kenya, particularly in urban centers like Mombasa. Despite the implementation of the Sexual Offences Act of 2006 (the Act), which was designed to address and mitigate sexual crimes, the prevalence of defilement cases continues to raise concerns about the effectiveness of the existing legal framework. This research paper aims to evaluate the efficiency of Kenyan laws in addressing defilement cases, with a specific focus on Mombasa. The coastal region's unique socio-cultural dynamics further complicates the implementation of these laws. Prevailing factors such as poverty, tourism and cultural practices influence the prevalence and reporting of defilement cases.

The study will explore the legal mechanisms in place, the challenges faced by law enforcement and judicial bodies and other factors that influence the reporting, prosecution and adjudication of such cases. By analyzing court records and having the privilege to have sat in on some of the defilement hearings, this research seeks to identify gaps in the current system and propose actionable recommendations. Moreover, understanding the efficiency of the existing laws is crucial for ensuring justice for victims and enhancing the protection of minors.

1.1 Background of the study

It is pertinent to acknowledge that defilement is a heinous act and this can be seen from the penalties leveled against the perpetrators under the Act. Mombasa, being a major urban center and one of the top tourism hubs not only in Kenya but also Africa,² presents unique challenges in addressing defilement cases. The region's socio-cultural dynamics, economic disparities and urbanization contribute to the complexity of effectively implementing and enforcing the law. Additionally, the stigma associated with sexual violence, coupled with an inadequate support system are factors not to be overlooked for they are a hindrance to the reporting and prosecution of defilement cases.

¹ Section 8, Sexual Offences Act, No.3 of 2006.

² <https://www.tuko.co.ke/kenya/446848-mombasa-the-island-war-evolved-biggest-tourist-hub-kenya/> accessed 28 August, 2024.

The prevalence and impact of defilement on the victims cannot be underscored any further. Mombasa being a tourist hub and an urban center, such factors predispose it to the upsurge in sexual crimes, has numerous reports of sexual abuse against children. The Gender-Based Violence Rescue Centre in Mombasa, run by the International Centre for Reproductive Health, reports that between April and June 2022, 128 cases were reported.³ Of these, 114 were defiled, with ages 12 to 17 recording 83 cases (77 females and six males), and the 6-11 age bracket recording 22 cases.⁴ Between April and June 2023, the center recorded 104 survivors who reported for medical services, with women suffering more at 91 percent compared to men at nine per cent.⁵ It is disheartening and an eyesore that these numbers have been soaring over the years and yet we have laws in place that are supposed to deter and punish the perpetrators.

1.2 Historical Background

The historical context is crucial for understanding the current challenges and evaluating the efficiency of Kenyan laws in quelling defilement in Mombasa. It shall be canvassed in three limbs; the precolonial, colonial and post-independence era.

1.2.1 Pre-colonial and Colonial Era

The issue of defilement in Kenya is deeply rooted historically, interwoven with the country's socio-cultural and legal evolution. Traditionally, many communities in Kenya handled cases of sexual violence, including defilement, through the various customary practices unique to the different tribes in Kenya. These customary justice systems often prioritized community harmony over individual justice, often than not resulting in the underreporting and inadequate addressing of such crimes.

With the advent of colonial rule (1885- 1963)⁶, the British colonial administration introduced their legal system to Kenya, which was predominantly based on English common law. These laws were

³ By Angela Oketch, 'Unmasking the rising tide of defilement and incest', <<https://nation.africa/kenya/news/gender/unmasking-the-rising-tide-of-defilement-and-incest-4456836> > accessed 28 August, 2024.

⁴ n 3.

⁵ By Angela Oketch, 'Unmasking the rising tide of defilement and incest', <<https://nation.africa/kenya/news/gender/unmasking-the-rising-tide-of-defilement-and-incest-4456836> > accessed 28 August, 2024.

⁶ A Guide to the United States' History of Recognition, Diplomatic, and Consular Relations, by Country, since 1776: Kenya <<https://history.state.gov/countries/kenya#:~:text=From%201895%20until%201963%2C%20the,part%20of%20British%20East%20Africa> > accessed 28 August, 2024.

the onset of shaping Kenya's legal framework. However, significant strides in addressing sexual violence through cognizable statutory laws were not made until after independence. One of the earliest laws in Kenya specifically addressing sexual offenses was the Sexual Offences Act of 1928. The scope and penalties of this statute were limited. The Penal Code⁷ enacted in 1930, one of the earliest statutes that transcends the various recorded epochs, had provisions on sexual violence but they were not adequate in addressing the complexities of defilement cases.

1.2.2 Post-Independence (1963 – Present)

After independence, Kenya was bequeathed with some of the laws enacted during the British administration. The Penal Code, adopted after independence, categorized defilement and other sexual offenses under the ambit of unnatural offenses. This categorization was not only broad and yet limiting in principle but also in practice. It often made it difficult for judges to deliver sentences and legal practitioners to decipher the offenses under such an umbrella when faced with peculiar circumstances.

The enactment of the Sexual Offences Act of 2006, was a significant milestone in the Kenyan legal system as far as precise elaboration of sexual offenses was concerned. This landmark legislation was a response to the growing recognition of the need for a more robust legal framework to combat sexual violence. The Act introduced stringent penalties for defilement and other sexual offenses, aiming to provide better protection for victims and ensure accountability for perpetrators.⁸ Despite these advancements, the enforcement of the Act has faced numerous challenges ranging from societal stigma, inadequate resources for law enforcement and gaps in the judicial process.⁹

1.3 Objectives of the study

The primary objective of this study is to evaluate the efficiency of Kenyan laws in addressing defilement cases, with a specific focus on Mombasa in a way that will help the general public and relevant stakeholders understand the issue in the lens of: the existing legal framework and their effectiveness; investigating the challenges faced by law enforcement agencies, the judiciary and

⁷ Cap 63.

⁸ <https://www.iosjournals.org/iosr-jhss/papers/Vol.26-Issue11/Ser-1/I2611015255.pdf> accessed 28 August, 2024.

⁹ Kara C.N, 'Enforcing and Implementing the Law on Defilement in Kenya: A Critique' https://erepository.uonbi.ac.ke/bitstream/handle/11295/64436/Kara_Enforcing%20and%20implementing%20the%20law%20on%20defilement%20in%20Kenya:%20a%20critique accessed 28 August, 2024.

other stakeholders in the prosecution and adjudication of defilement cases in Mombasa; exploring the socio-cultural factors that impact the reporting, prosecution and adjudication of such cases.

In addition, the research shall assess the availability of and effectiveness of support systems for victims of defilement, including medical, psychological and legal support. Bolstering such support systems, the issue would have been partly solved. The research shall provide practicable and actionable recommendations hoping that they shall be used as a reference points in future for improving the legal framework and its implementation to enhance the protection of the minors and ensure justice for victims of defilement in Mombasa.

1.4 Research Questions

The following questions have been crystallized and shall be answered throughout the paper.

- i. What extent do the Kenyan laws, particularly the Sexual Offences Act of 2006, provide adequate penalties and procedural safeguards for defilement cases?
- ii. What are the primary challenges faced by law enforcement agencies, prosecutors and courts in handling defilement cases in Mombasa?
- iii. How do factors such as evidence gathering, victim support and corruption impact the efficiency of defilement of case prosecution?
- iv. What are the experiences of victims of defilement in Mombasa with the legal system, including the adequacy of support services and the satisfaction with the outcomes of their cases?
- v. How do cultural and social factors influence victims' willingness to report defilement cases and their participation in the legal process?

1.5 Legal Framework

The Sexual Offences Act¹⁰ is the primary legislation addressing defilement in Kenya. The Act defines defilement as the act of engaging in sexual intercourse with a minor¹¹ and prescribes severe penalties for offenders, including life imprisonment for cases involving victims under the age of

¹⁰ No. 3 of 2006.

¹¹ Section 8, Sexual Offences Act, No.3 of 2006.

eleven.¹² The Sexual Offences Act,¹³ is the governing legal framework for sexual offenses in general and defilement in particular.

The Act begins by giving a definition of the offense and it proceeds to provide a threshold for sentencing. The Act prescribes for a sentence period of life imprisonment for any person who commits an offence of defilement with a child aged eleven years or less.¹⁴ Moreover, a person who commits an offence of defilement with a child aged between twelve and fifteen years is liable upon conviction to imprisonment for a term not less than twenty years,¹⁵ also, a person is liable upon conviction to imprisonment for a term not less than fifteen years if he or she is found to have defiled a child between the age of sixteen and eighteen years.¹⁶ The significance of this threshold is that it gives the judge discretionary powers in sentencing while also limiting such powers. The Act also provides for an instance where the person charged with an offence under the Act is below the age of majority, by making reference to the provisions of the Children Act¹⁷ to be used in sentencing.¹⁸

Despite the existence of stringent provisions, several studies have highlighted challenges in the implementation of the Act. This part of the paper synthesizes key findings from existing research to provide a comprehensive understanding of the efficiency of Kenyan laws in addressing defilement cases, particularly in Mombasa.

Christine Njeri Kara's thesis, "Enforcing and Implementing the Law of Defilement in Kenya: A Critique,"¹⁹ provides a comprehensive analysis of the challenges and inefficiencies in the current legal framework. She critiques the Sexual Offences Act, highlighting its strengths and weaknesses in addressing defilement cases. Kara acknowledges that the Act was a significant legislative step aimed at curbing sexual offenses, including defilement, by introducing stringent penalties and protective measures for victims. However, she points out several challenges in its enforcement.

¹² n 11.

¹³ Sexual Offences Act, No. 3 of 2006.

¹⁴ Section 8(2), Sexual Offences Act, No. 3 of 2006.

¹⁵ Section 8(3), Sexual Offences Act, No. 3 of 2006.

¹⁶ Section 8(4), Sexual Offences Act, No. 3 of 2006.

¹⁷ Children Act, No. 29 of 2022.

¹⁸ Section 8(7), Sexual Offences Act, No. 3 of 2006.

¹⁹ Kara C.N, 'Enforcing and Implementing the Law on Defilement in Kenya: A Critique' https://erepository.uonbi.ac.ke/bitstream/handle/11295/64436/Kara_Enforcing%20and%20implementing%20the%20law%20on%20defilement%20in%20Kenya:%20a%20critique accessed 29 August, 2024.

These include inadequate training for law enforcement officers, inadequacy of resources and corruption, which hinder effective prosecution and adjudication of defilement cases.

Moreover, Kara discusses how cultural practices and social stigma often discourage victims from reporting defilement, leading to underreporting and inadequate legal redress. In Mombasa, these issues are exacerbated by the region's unique socio-cultural dynamics, including traditional beliefs and practices that may conflict with formal legal process. In addition, Kara analyses and highlights inefficiencies within the judicial system. Delays in the judicial process, lack of specialized courts and insufficient victim protection measures contribute to the inefficiency of the legal system in handling such cases. She points out that the direct cause and effect of such challenges is prolonged trials and inadequate support for victims.

Additionally, Kara notes that victims often lack access to comprehensive medical, psychological and legal support. While some support is provided by the Department of Children's Services and various non-governmental organizations, these services are often insufficient and not well-coordinated. She concludes with several recommendations for improving the enforcement and implementation of defilement laws in Kenya. These include enhancing training for law enforcement officers, increasing resources for the judicial system and improving coordination among support services for victims. Moreover, she emphasizes that there is need for public awareness campaigns to reduce stigma and encourage reporting of defilement cases.

1.6 Conclusion

In conclusion, the literature highlights significant challenges in the implementation of Kenyan laws addressing defilement, particularly in Mombasa. Socio-cultural factors, inadequate support systems and inefficiencies in the judicial process are major impediments to the effective enforcement of the Sexual Offences Act. Addressing these challenges requires a multifaceted approach, including legal reforms, enhanced support for victims and increased public awareness.

Chapter Two

2.0 The Problem Question

2.1 Introduction

The central problem question of this study is: *How efficient are Kenyan Laws in addressing defilement cases in Mombasa?* This question seeks to explore the effectiveness of the legal framework, the challenges faced by law enforcement and judicial bodies and the role of socio-cultural factors in reporting, prosecution and adjudication of defilement cases. By addressing this problem question, the study aims to appositely identify gaps in the current legal system and propose actionable and practicable recommendations for improvement. Understanding the efficiency of these laws is crucial for ensuring justice for victims and enhancing the protection of minors in Mombasa. This chapter will delve into the various dimensions of the problem, providing a comprehensive analysis of the legal, social and cultural factors that impact the enforcement of defilement laws in the region.

It is noteworthy, that during my judicial attachment at Mombasa law courts, I had the privilege of listening in on various cases, most of which will form the bedrock of my research under this chapter. In the case of ***Kazungu Kitsao alias Babu v The Republic HCCRA/E044/2023*** before Hon. Justice Ann Onginjo, the defense lawyer was challenging the charge of defilement leveled against the accused and an appeal over a conviction and sentence of life imprisonment. The defense submitted that the accused's act of using his finger to sodomize the victim totally neuters the charge of defilement as it mutates the charge to another charge as envisaged under section 5(1) of the Sexual Offences Act (the Act). This is an outright legal ambiguity because there seems to be an overlap between the definitions of defilement and sexual assault or indecent act with a child.²⁰ The defense lawyers may exploit such ambiguities, as seen in the above case, to secure lessened charges or acquittals for their clients.

In another case, ***Mrenje Chumbe Ndune v Republic HCCRA/5136/2021***, an appeal hearing against the conviction and sentence of 20 years' imprisonment for the offense of defilement. The issue being appealed was whether or not the appellant's conviction was in violation of the Evidence Act. The defense submitted that the trial court had erred in law by illegally admitting and heavily relying on exhibits which were not rubberstamped or sealed. Improper evidence collection results

²⁰ Section 11, Sexual Offences Act, No.3 of 2006.

in weak cases that prove difficult to prosecute successfully. There were other cases on defilement but the two are vital for this study, under this part, because they shall be instrumental in expounding on the challenges affecting the efficiency of laws in Kenya while addressing the issue of defilement. Under this chapter, the challenges shall be canvassed at length and in a seriatim.

2.2.0 Inadequate training of law enforcement personnel

This is one of the critical challenges in addressing defilement cases in Kenya. It is trite that defilement cases require a nuanced understanding of both legal and psychological aspects. Law enforcement officers often lack specialized training in handling sexual offenses, which often leads to mishandling of evidence, a major setback in prosecuting defilement cases. It came to my attention, during one of the court sessions, that most law enforcement officers handling defilement cases lack the requisite degree of sensitivity towards victims. This has been occasioned by inadequate training which often lead to insensitive interactions with victims thereby discouraging some of them from cooperating with the investigation and potentially re-traumatizing them.

In addition, inadequacy in training of law enforcement personnel has a direct cause and effect on their legal knowledge. Law enforcement personnel who have not been adequately trained are not well-versed with the legal intricacies of sexual offenses thus leading to misclassification of offenses and some debilitating procedural errors that often than not jeopardize the case. Also, for effective handling of defilement cases there is need for interagency coordination. Whereby the police, medical professionals, social workers and the judiciary coordinate to curb the upsurge in defilement cases but with the inadequately trained personnel in the picture, interagency coordination might be an uphill climb because of communication barriers thus leading to fragmented and inefficient case management.

2.2.1 Legal Ambiguities

The ambiguities arise from the definition of the offenses of defilement, sexual assault and indecent act. The Act defines sexual assault as the unlawful penetration of the genital organs of another person with any part of the body of another or that person²¹ or unlawfully penetrates the genital organs of another with an object manipulated by another or that person.²² Whereas under the Act, an indecent act, has not been defined. This opens the floodgates of multiple interpretations of an

²¹ Section 5(1)(a)(i), Sexual Offences Act, No.3 of 2006.

²² Section 5(1)(a)(ii), Sexual Offences Act, No.3 of 2006.

offense and such ambiguities may be exploited by defense lawyers to argue for lesser charges or even acquittals. In a certain case, *Republic v Jamal Faud MCSO Case No. 22/22*, the victim was a seventeen-year-old girl and the accused a twenty-two-year-old man. The victim gave a testimony saying that she had consented to have the relationship with the accused. The accused pleaded consent as his defense. This is one instance of an ambiguity because, the modalities of the offences of rape and defilement are overlapping in interpretation.

Moreover, such ambiguities have created a leeway for judicial discretion. Magistrates and judges may exercise discretion in interpretation of the evidence and the charges leveled against the accused and in doing so, this can result in downgrading the charges from defilement to indecent act, especially when the evidence is not compelling enough to meet the threshold of defilement. Consequentially, a discrepancy in sentencing can occur, thus undermining the severity of the crime and the justice sought by victims and their families. This potentially sends a message understating the seriousness of sexual offenses against minors.

2.2.2 Inadequate psycho-social support for victims

The inadequacy in psycho-social support or lack of it thereof significantly impacts the efficiency of the legal system and the overall well-being of the victims in a myriad of ways. Victims of defilement often experience severe emotional and psychological trauma. Without adequate psychological support, these victims may struggle with long-term health issues such as post-traumatic stress disorder (PTSD). This trauma can hinder their ability to participate effectively in the legal process, including giving incoherent testimonies. Also, the negative impact of inadequate or lack of psycho-social support on the victims is that, they may be apathetic to engage in the judicial process with some of them withdrawing their cases. This in turn results in lower conviction rates and a perception of inefficiency in the legal system.

2.2.3 Inadequate allocation of resources

The inadequacy of resources is a significant challenge in addressing defilement cases in Kenya. This issue affects various aspects of the legal and support systems, hindering the effective implementation and enforcement of laws designed to protect minors and ensure justice for victims. Under the ambit of insufficient personnel, many police stations lack adequate personnel to handle the volume of defilement cases being reported. This shortage leads to overworked officers who may not have the time or energy to thoroughly investigate each case. The judiciary, one of the

inadequately resourced organs, often face significant backlog of cases due to lack of judges and understaffing. This results in delayed trials and prolonged periods of uncertainty for victims and their families. Also, many courts lack the necessary facilities to handle defilement cases, such as private rooms or video-conferencing equipment to protect victims from intimidation.

In addition, most victims of defilement have limited access to counselling and medical services and yet they require immediate and ongoing psychological and medical support. Therefore, resource constraints mean that many victims do not have access to these essential services, which are crucial for their recovery. With the cost related to litigation in Kenya, many victims cannot afford legal representation and the availability of legal aid services is limited. Such extents of inadequacy of resources can result in victims being inadequately represented in court.

2.2.4 Socio-cultural practices in Mombasa

The socio-cultural practices in Mombasa and the broader coastal region of Kenya significantly impact the efficiency of addressing defilement cases. Many communities in the region prefer resolving disputes, including defilement, through traditional mechanisms rather than formal legal channels. This route is often taken to prioritize community harmony over the victim's legal justice. Thus resulting in underreporting and inadequate legal action against offenders. Moreover, cultural norms such as gender roles often dictates strict gender roles, which can influence the perception and handling of defilement cases. This forces the victims, especially girls, to bear the brunt for blame and stigma.

In addition, the high poverty levels in the region can exacerbate the challenges in addressing defilement. Sometimes, you find that the victim's family may be economically dependent on the perpetrator therefore, leading to reluctance in pursuing legal action. Also, Mombasa's status as a major tourist destination brings additional challenges. Most tourists fleetingly visit the region and if they were to commit an offense of defilement it might be difficult to pursue legal action.

2.3 Conclusion

In conclusion, addressing these challenges requires a multifaceted approach through targeted reforms and increased resource allocation, it is possible to improve the efficiency of the legal system in Mombasa and ensure justice and protection for victims.

Chapter Three

3.0 Comparative study between Kenya and South Africa

3.1 Introduction

South Africa is a suitable jurisdiction for a comparative study on the efficiency of Kenyan laws in addressing defilement cases, given its similar socio-political context and legal framework. Both Kenya and South Africa have a shared colonial history, which has tremendously influenced their legal systems and the embroidery of their societal fabric. The diverse population is also a significant point of similarity. Both countries have populations with varying cultural, religious and socio-economic backgrounds. The point of departure of this comparative study are the unique challenges shared by both countries: high rate of defilement cases; prosecution hurdles as a result of underreporting or delayed reporting; resource constraints.

3.2 Legal Comparison

South Africa's legal framework on sexual offenses, like that of Kenya, is comprehensive. The primary legislations governing the offense in question include the Sexual Offences and Related Matters Amendment Act,²³ and the Children's Act.²⁴ The Amendment Act of 2007 provides a broad definition of sexual offenses, including rape, sexual assault and sexual exploitation of children. It specifically criminalizes acts of defilement, defined as engaging in sexual activities with minors under the age of 16, regardless of consent.²⁵ The Act prescribes severe penalties for offenders, including lengthy prison sentences.

The Children's Act focuses on the protection and welfare of children. It outlines the responsibilities of various stakeholders, including parents, guardians and the state in safeguarding children from abuse and exploitation.²⁶ The legislation goes further to provide for the offences relating to exploitation of a child and the punishment that can be meted against them. It states that any person who is the owner, lessor, manager, tenant or occupier of any premises on which the commercial

²³ No. 32 of 2007.

²⁴ No. 38 of 2005.

²⁵ Thompson J. and Simmons F.N, '*Rape Sentencing Study: A Review of Statutory Sentencing Provisions for Rape, Defilement, and Sexual Assault in East, Central and Southern Africa*' < <https://www.svri.org/sites/default/files/attachments/2020-01-06/A%20review%20of%20statutory%20sentencing%20provisions%20for%20rape%20defilement%20and%20sexual%20assault%20in%20East%20Central%20and%20Southern%20Africa.pdf> > accessed 30 August, 2024.

²⁶ Article 7(1)(l)(i), Children's Act No. 38, 2005.

sexual exploitation of a child has occurred is guilty of an offence.²⁷ On the other hand, the Sexual Offences Act²⁸ is the primary legislation addressing defilement in Kenya. The Act defines defilement as the act of engaging in sexual intercourse with a minor²⁹ and prescribes severe penalties for offenders, including life imprisonment for cases involving victims under the age of eleven.³⁰

3.3 Conclusion

In conclusion, this research paper has explored the efficiency of Kenyan laws in addressing defilement cases, with a specific focus on Mombasa. The study has highlighted several critical challenges that hinder the effective implementation and the enforcement of the Sexual Offences Act of 2006 and other relevant legal frameworks. Key findings indicate that socio-cultural practices, inadequate training for law enforcement officers, insufficient psycho-social support for victims and resource constraints significantly impact the handling of defilement of cases. Moreover, the comparative analysis with South Africa has provided valuable insights into similar challenges faced by another jurisdiction, offering potential best practices that could be adopted to improve the situation in Mombasa. To ensure justice for victims and enhance the protection of minors, it is crucial to address the identified gaps and challenges within the current legal framework.

3.4 Recommendations

Firstly, it is crucial to clear the legal ambiguities that currently hinder effective prosecution and adjudication. The legislature should enact amendments to the Sexual Offences Act to provide clear and precise definitions of key terms such as “defilement”, “indecent act” and “sexual assault”. This will eliminate any confusion and ensure consistent application of the law. It is also essential to develop and implement standardized guidelines for law enforcement. Standardized protocols for handling defilement cases should include detailed guidelines on evidence collection, victim interviews and case documentation to ensure thorough and consistent investigation.

Secondly, it is pertinent to involve civil society organizations (CSOs) in a structured and impactful manner. It is trite that civil society plays an invaluable role in advocacy, support and community

²⁷ Article 305(5), Children’s Act No. 38, 2005.

²⁸ No. 3 of 2006.

²⁹ Section 8, Sexual Offences Act, No.3 of 2006.

³⁰ n 11.

engagement and their involvement can significantly strengthen the existing legal and support systems. Moreover, establishing formal collaborative networks between government agencies, law enforcement and civil society organizations is crucial. Since, these networks facilitate better coordination and resource sharing, ensuring a more comprehensive approach to addressing defilement cases.

Lastly, to improve the efficiency of Kenyan laws in addressing defilement cases, it is essential to enhance psycho-social support and strengthen victim protection measures. There needs to be established integrated care centers that provide a one-stop solution for victims of defilement. These centers should offer medical care, psychological counselling, legal aid and social support. Additionally, specialized training should be provided for to healthcare providers, social workers and legal professionals on how to handle defilement cases. This training should focus on trauma-informed care, victim sensitivity and effective support strategies.

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